

**WALKER, et al v JODY A. TAYLOR and SHARON L. CLARK,
Trustees of the Double Springs Ranch Trust, et al**

24CV47475

**DEFENDANT’S MOTION FOR PREFERENTIAL TRIAL
SETTING PURSUANT TO CCP 36(a)**

This civil action stems from dispute concerning an easement and questions over title to a certain stretch of property. Randy Walker (“Walker”) and Jessica Albonico (“Albonico”) (collectively, “Plaintiffs”) filed this action to determine the parties’ respective rights and duties as well as to quiet title. Defendants are Jody A. Taylor (“Taylor”) and Sharon L. Clark (“Clark”) Trustees of the Double Springs Ranch Trust; Carol A. Gates, Trustee of the Carol A. Gates Family Trust (“Gates”); Perry Williard; Cheryl Willard Alden R. Houbein and Virginia A Houbein, Trustees of the Houbein Revocable Trust DTD March 21, 1996; John M. Taylor, Katherine L. Taylor, and Mark Van Lobel Sels and Mary Van Lobel Sels (collectively “Van Lobel Sels”).

The complaint was filed on July 3, 2024. A cross-complaint was filed by Taylor and Clark as Trustees, Gate as Trustee, and the Van Lobel Sels on April 29, 2025.

On July 11, 2025, the Court granted the Cross-Complainants’ request for preliminary injunction. Plaintiffs were thereby prohibited from entering, traversing, or performing any acts of use upon the Cross-Complaints’ property, and any real property described in the Complaint, in order to prevent the creation of prescriptive easement.

Now before the Court is Defendant/Cross-Complainant Taylor’s motion for trial preference.

I. Legal Standard

California Code of Civil Procedure § 36(a) provides:

A party to a civil action who is over 70 years of age may petition the court for a preference, which the court shall grant if the court makes both of the following findings:

- (1) The party has a substantial interest in the action as a whole.
- (2) The health of the party is such that a preference is necessary to prevent prejudicing the party's interest in the litigation.

Taylor's motion states that he is over 70 years of age. (Declaration of Justin A. Mankin ("Mankin Decl.") ¶ 4.) Mr. Mankin is Mr. Taylor's attorney and avers that Mr. Taylor is "currently bedridden and suffers from serious health-related limitations associated with aging, which significantly impair their ability to participate in the litigation over time.

(*Id.* ¶ 5.) Taylor's age and health status lead his counsel to request that the case be tried on a preferential basis. (*Id.* ¶ 6.)

There is no opposition to this motion.

II. Analysis

Preferential trial setting is mandatory where the Court finds that a party to a civil action is over the age of 70, the Court finds the party has a "substantial interest in the entire action," and the party's health justifies preference. (Code Civ. Proc. § 36(a).) A declaration submitted in support of a motion for preference under Code of Civil Procedure section 36, subdivision (a), "may be signed by the attorney for the party seeking preference based upon information and belief as to the medical diagnosis and prognosis of any party." (Code Civ. Proc., § 36.5.)

In determining a motion for mandatory trial preference under section 36, subdivision (a), the court does not weigh the parties' respective interests or consider any inconveniences to the court or the parties. (*Swaithe v. Superior Court* (1989) 212 Cal.App.3d 1082, 1085.) Nor does the Court consider whether there is outstanding discovery or other outstanding pretrial matters. (*Ibid.*) If a party meets the statutory standards for trial preference, the motion must be granted, and the case must be set for trial not more than 120 days from that date. (Code Civ. Proc. § 36(f).)

Plaintiffs have not filed an opposition.

The court finds that Taylor who is 70 years of age and has a substantial interest in this case. The evidence presented in the motion demonstrates that plaintiff's health is such

that preference is necessary to prevent prejudicing his interest in the litigation. Taylor's health or condition. (*Fox v. Superior Court* (2018) 21 Cal.App.5th 529, 536 [lack of specifics about the health prognosis was insufficient reason to deny trial preference].)

Therefore, plaintiff's motion for trial preference is **GRANTED**; a five (5) day jury trial is set for **January 7, 2026, at 8:30 a.m. in Dept. 3. A Trial Confirmation Conference is scheduled for January 6, 2026, at 11:30 a.m. in Dept. 3. A Trial Readiness Conference is scheduled for December 16, 2025, at 11:30 a.m. in Dept. 3. Motions in Limine, trial briefs, lists of witnesses, and lists of exhibits must be filed and served by 3:00 p.m. on December 11, 2025.**

The clerk shall provide notice of this ruling to the parties forthwith. The Court intends to sign the proposed Order submitted by moving counsel.

MARTIN v SANCHEZ, et al

24CV47669

DEFENDANT EA FAMILY SERVICES' DEMURRER TO FAC

Plaintiff Caleb Martin ("Plaintiff") filed his Complaint arising out of allegations of sexual child abuse against Janine Ann Sanchez ("Sanchez"), Environmental Alternatives¹, EA Family Services ("EA Services") and Does 1-50 (collectively, "Defendants"). After the Court sustained an earlier demurrer, Plaintiff filed a First Amended Complaint on July 17, 2024. Now before the Court is a renewed demurrer filed by EA Services to the first cause of action for sexual abuse.

I. Facts

Plaintiff, while a minor of approximately 14 years of age, was placed by EA Services as a foster child into the home of Sanchez. Subsequently, Plaintiff claims that he was subjected to sexual abuse by Sanchez. Plaintiff contends that Sanchez coerced him into participating in the sexual conduct. On July 19, 2016, Sanchez was arrested for various felonies related to allegations of sexual abuse against Plaintiff. Plaintiff asserts that the alleged abuse resulted in mental, physical, and emotional pain and suffering.

Plaintiff has brought the instant action against moving Defendant EA Services under the cause of action titled "child sexual abuse." Plaintiff alleges that EA Services is a business that serves foster children and provides "background checks, health screening, provide pre-approved training and education of safety issues, educational and special needs, child abuse identification and prevention, discipline, and how to work with birth parents and placement so the child will thrive in the foster care environment." (FAC ¶ 4.) Plaintiff further alleges that EA Services was responsible for placing the Plaintiff in Sanchez's home where he was abused. (*Id.* ¶ 5.) Plaintiff also alleges that EA Services had an ongoing duty to ensure the safety of the children which it placed into foster homes. (*Id.* ¶ 7.) Plaintiff finally alleges that a result of the placement and abuse, he was damaged.